

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

December 19, 2019

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Pete Laybourn, Mike Luna, Scott Roybal, Dicky Shanor and Jeff White. Absent: Ken Esquibel and Dr. Mark Rinne. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. Shanor abstained due to affiliation with agenda item #9. Upon request by Mr. Laybourn, and pursuant to support received by Mr. Cook and Mr. Roybal, agenda item #11 was removed from the Consent Agenda. Mr. Luna moved to approve remaining items, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on December 9, 2019. Motion (per Consent Agenda) carried.

Mayor Orr opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for the North ½ of Lot 4, Williams Subdivision, Laramie County Wyoming (located northeast of the intersection of Marshall Road and Storey Boulevard). Tawn Hillenbrand, Planning and Development, provided information relating to the compliance of annexation requirements. Ed Clark, area property owner, expressed concerns with variances needed for access, neighborhood safety and property values. Mr. Clark advised he is otherwise not opposed to the annexation. There being no further comments or input and purpose of the hearing having been met, Mayor Orr closed the hearing.

ORDINANCE – 1st READING – Annexing to the City of Cheyenne, Wyoming, the North 1/2 of Lot 4, Williams Subdivision, Laramie County, Wyoming (located northeast of the intersection of Marshall Road and Storey Boulevard) – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE – 1st READING – Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from County LR Low-density Residential to City LR Low-density Residential for the North 1/2 of Lot 4, Williams Subdivision, Laramie County, Wyoming (located northeast of the intersection of Marshall Road and Storey Boulevard) – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Providing for the review and approval of a Federal Mineral Royalty Capital Construction Account Grant application to the Wyoming State Loan and Investment Board on behalf of the Governing Body for the South Cheyenne Water and Sewer District for two Sewer Collector Rehabilitation Projects – Southern Interceptor (Priority One) and Terry Road Sewer Collector (Priority Two). Motion (per Consent Agenda) carried. (#6027)

[CA] RESOLUTION – Supporting the City of Cheyenne’s application for a Land and Water Conservation Fund Grant for replacement of the playground in South Lions Park. Motion (per Consent Agenda) carried. (#6028)

RESOLUTION – Approving Sanitary Sewer Service, by Outside User Sanitary Sewer Services Agreement, for Laramie County Fire District No. 2, for Tract 28, excepting the East 40 feet of said tract, Dell Range Addition, 2nd Filing, Section 22, Township 14 North, Range 66 West, of the 6th P.M., Laramie County, Wyoming. Reporting for Finance Committee, Mr. White moved to adopt, seconded by Mr. Luna. Rod Stone, area property owner, commented on flooding issues relating to the development of Thomas Heights and how it has affected his property. Mr. Stone inquired about a detention pond in the area to help eliminate flooding issues. Michael O’Donnell, City Attorney, upon inquiry, reported the Engineering Department is working on 3 different options to solve issues. He advised a meeting will be held for residents in the area to explain the options, one of which is a detention pond. Mr. O’Donnell explained a cooperative conversation with all parties involved is ongoing and the goal is to reach a stage where people downhill from Thomas Heights will no longer experience flooding. Mr. Stone encouraged the governing body to support Laramie County Fire District #2 with this request. Jason Caughey, Laramie County Fire District #2 Fire Chief, upon inquiry, explained prior to the development of Thomas Heights, they did not have to service their sewer system in 11 years and since then, they service it twice a month at the sum of \$13,000.00 for 6 months. He advised engineers involved explained this is due to saturation of the area. It was noted the saturated area isn’t being considered for a detention pond and that Laramie County Fire District #2 would be interested in continuing conversations to find a remedy. He further explained their property consists of 2 lots and 10 acres. Comments were made in support of the agreement, concern relating to flooding issues in the area and finding a resolution to prevent further property damage. Motion carried. Voting “yes” – all members of the governing body present. (#6029)

RESOLUTION – Pursuant to W.S. §15-1-404 (b) certifying compliance with W.S. §15-1-402, for a City-initiated annexation for portion of land generally located between Old Happy Jack Road and Happy Jack Road, and west of I-80. Reporting for Public Services Committee, Mr. Shanor moved to adopt, seconded by Mr. Luna. Mr. Shanor moved to amend by substitute dated 12/16/2019, seconded by Mr. Luna. Mr. Shanor explained the substitute corrects a clerical error in the entitlement from I-80 to I-25. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended carried. Voting “yes” – all members of the governing body present. (#6030)

[CA] RESOLUTION – Authorizing a street name change from “Cribbon Avenue” to “South Cribbon Avenue” for the portion of the street located between West Jefferson Road and Pinto

Lane, City of Cheyenne, Laramie County, Wyoming. Motion (per Consent Agenda) carried. (#6031)

[CA] RESOLUTION – Designating local banks as depositories for municipal funds – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Authorizing the Cheyenne Police Department to apply for Office on Violence Against Women OVW-2020-17563 Improving Criminal Justice Responses to Domestic Violence, Dating Violence, Sexual Assault, and Stalking Grant Program CFDA Number 16.590-Grants to Encourage Arrests Policies and Enforcement of Protection Orders Program – referred to Finance Committee. (Sponsor – Mr. White)

RESOLUTION – Certifying that the Governing Body of the City of Cheyenne has agreed to the Town of Albin’s Capital Improvement Projects to be submitted to the Office of State Lands and Investments, State Loan and Investment Board, for Countywide Consensus Block Allocation Grant Funding from BFY 2011/2012 in the total amount of \$14,562.00. (Re-allocation of funds) - refer to Finance Committee. Mr. Shanor declared a conflict of interest due to his current employment, vacated chambers and abstained from discussion and voting. Mr. White explained the item was reviewed under other items for the agenda at the 12/16/2019 Finance Committee meeting and that provisions of Title 2 have been met. Mr. White moved to adopt, seconded by Mr. Luna. Mr. White explained the Mayor of Albin brought forward the resolution which is time sensitive relating to the application submittal and that the Town of Albin desires to submit the grant application to SLIB for funding. Motion carried. Voting “yes” – all members of the governing body present. (#6032)

[CA] Professional Services Agreement between the City of Cheyenne and Western Research and Development, Ltd, for 2020 Signal Upgrade Design Services (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried. (#7117)

[CA] Memorandum of Understanding between the City of Cheyenne and Saddle Ridge, LLC, to outline the responsibilities for the donation of land and for the management of a multi-purpose non-motorized pedestrian and bicycle pathway, park and landscape amenities in a portion of Saddle Ridge, 7th and 9th Filings (Community Facilities Fees). Motion (per Consent Agenda) carried. (#7118)

[CA] Memorandum of Understanding between the City of Cheyenne and WJE, LLC, to outline the responsibilities for the donation of land and for the management of a multi-purpose non-motorized pedestrian and bicycle pathway, park and landscape amenities in a portion of Saddle Ridge, 8th, 9th, 10th, 11th, 12th and 13th Filings (Community Facilities Fees). Motion (per Consent Agenda) carried. (#7119)

[CA] Cooperative Agreement between the City of Cheyenne and Wyoming Department of Transportation for the 2020 Epoxy Striping Project (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried. (#7120)

[CA] Lease agreement between the City of Cheyenne and The Girl Scouts of Montana and Wyoming, for 45.93 acres of city-owned real property located near the former Roundtop Water Treatment Facility to be used for the purposes of conducting activities consistent with the By-Laws and Articles of Incorporation of the Girl Scouts of Montana and Wyoming – referred to Finance Committee.

[CA] Memorandum of Understanding between Laramie County, Wyoming, and the City of Cheyenne, Wyoming, for the acquisition of Lots 2, 3, and 4 of Frontier Park, a subdivision to the City of Cheyenne, consisting of 3.78 acres, situated in portions of Government Lots 1 and 2, NE $\frac{1}{4}$ NE $\frac{1}{4}$ and SE $\frac{1}{4}$ NE $\frac{1}{4}$ of Section 25, Township 14 North, Range 67 West, of the 6th P.M., City of Cheyenne, Laramie County, Wyoming – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and A to Z Recreation LLC, for the Lincoln Park Play System Project. (Development Impact Fees, Special Revenue Fund, CDBG Funds) – referred to Finance Committee.

[CA] Agreement for services between the City of Cheyenne and the Church of St. Mary for Olivet Cemetery grounds maintenance, operations and office administrative services – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #6986 between the City of Cheyenne and TC Solutions, LLC, for Owner's Representative Services for the Splash Pad Project. Motion (per Consent Agenda) carried. (#6986)

[CA] Amendment No. #1 to Contract #7041 to Lease No. 8-09466 between the State of Wyoming, Department of Administration and Information, General Services Division, and the City of Cheyenne, to decrease the number of leased parking spaces from eighty-two (82) to seventy (70) at the George Cox Parking Structure – referred to Finance Committee.

[CA] Amendment #5 to Contract #2985 between the City of Cheyenne and the City of Cheyenne-Laramie County Joint Powers Board, for the acquisition of Lots 2, 3, and 4 of Frontier Park, a subdivision to the City of Cheyenne, consisting of 3.78 acres, situated in portions of Government Lots 1 and 2, NE $\frac{1}{4}$ NE $\frac{1}{4}$, and SE $\frac{1}{4}$ NE $\frac{1}{4}$ of Section 25, Township 14 North, Range 67 West, of the 6th P.M., City of Cheyenne, Laramie County Wyoming – referred to Finance Committee.

[CA] Consideration of Bid #E-4-20 for furnishing one (1) John Deere 1575 Terrain Cut with Comfort Cab Commercial Front Mower (less mower deck), Rotary Broom, Snow Blower, and Blade, for the City of Cheyenne, Facilities Division (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid from Stotz Equipment, Evansville, WY, in an amount not to exceed \$40,750.00).

[CA] Consideration of Bid #E-8-20 for furnishing One (1) Bomb Squad Robot, for the City of Cheyenne, Cheyenne Police Department. (Homeland Security Grant, Project #2000563) – referred to Finance Committee.

Reappointments of Brent Groesbeck and Joe Patterson to the Contractor Licensing Board; Nicholas Pickering and Ray Fertig, Jr. to the Building Code Board of Appeals; Lee Filer to the Personnel Commission; Patrice Gopen and Stephen Ganison to the Housing and Community Development Advisory Council; John Brewster and Jason Bogstie to the Historic Preservation Board; Greg Palmquist to the Planning Commission; William Beaman to the City/County Frontier Park Improvement Joint Powers Board, Jeffie Wiggins-McMullen to the Fire Civil Service Commission and Patti Riesland, Howard Hill Sr., Justin Whitacre, Michelle Woerner, Julie Tucker, Daryl Hensel, Mary Richey, Marsha Dial, Dr. Carole Martin and Steven Bates to the Mayor's Council for People with Disabilities. Mr. Luna moved to approve, seconded by Mr. Shanor. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mayor Orr who did not vote (mayoral appointment).

Appointments of Brian Casey to the Contractor Licensing Board; Julie Goode to the Building Code Board of Appeals; Carla Winkler to the Police Civil Service Commission; Haylee Chenchar to the Downtown Development Authority Board; Linda Burt to the Personnel Commission; David Cook and JC Manalo to the Housing and Community Development Advisory Council; Cathie Tabor-Douglas and Milward Simpson to the Historic Preservation Board; David Janes to the Laramie County Juvenile Services Joint Powers Board; Brian Fenimore to the Board of Adjustment and James Bowers to the Planning Commission. Mr. Roybal moved to approve, seconded by Mr. Luna. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mayor Orr who did not vote (mayoral appointment). Mayor Orr expressed appreciation to volunteers.

Appointment of Anthony F. Ross as Senior Municipal Court Judge effective January 3, 2020. Mr. Roybal moved to approve, seconded by Mr. White. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mayor Orr who did not vote (mayoral appointment).

Voucher Report. Frank Cole commented on dirt left by a contractor in the area of a Mountain Road project and requested it to be removed.

Revenue Report. No comments were made.

Under other business:

Michael O'Donnell, City Attorney, advised he would be offering an opinion on a petition filed by James Johnson, a Mayoral Candidate. Mr. O'Donnell provided history on the issues as follows: Mayor Orr declared a pothole emergency in August. The Engineering Department solicited bids, 2 responses were received, and the low bid was accepted. Mr. O'Donnell explained the high bidder was disqualified as work couldn't be completed in the required timeframe and the Engineering Department then reduced the scope of the bid quantity. The bid then came before governing body and was declined and a contract was never entered into. The petition was filed pursuant to WY § 15-1-113(j) related to malfeasance alleging a bid was entered into and the same consideration to alter the bid was not allowed by the higher bidder. Mr. O'Donnell recommended that the petition be dismissed as there was never a contract entered into. He explained the

Purchasing Manager does not enter into contracts but drafts documents, and in his opinion, the petition seeks to lure governing body into action against the statute cited in the petition. Mr. O'Donnell provided additional information relating to the allegations made by Mr. Johnson and stated the petition lacks validity and suggests the governing body take action that would be against the law. Mr. O'Donnell, upon inquiry, further advised that in his opinion, the petition should be dismissed with prejudice and that no hearing or action is necessary, noting the city properly followed the bid requirement process and that no malfeasance took place. Upon further inquiry from, Mr. O'Donnell advised the petition doesn't require any action as it doesn't require a hearing and is not required to be placed on an agenda for consideration but could be if that is the desire of the governing body. Mr. Case advised he forwarded the Attorney's legal opinion regarding the petition to Mr. Johnson. Prior to public comment, Mayor Orr advised those speaking on the issue would be allowed 3 minutes to comment. James Johnson commented on the petition and explained that he did not intend it to target Knife River vs. Simon Contractors and it was only filed to address the issue during a public hearing setting. Mr. Johnson added he did not intend to violate state statute and the purpose of the petition was to hold accountability for the bidding process. Mayor Orr, at the conclusion of the 3-minute response period, asked Mr. Johnson be removed from council chambers as he was not following procedure and continued to comment. Concern was expressed related to the petition being signed by many people and being dismissed on a technicality. Upon inquiry related to potential recourse if the petition is dismissed, Mr. O'Donnell reported this process is an anomaly state statute in Wyoming law and that there is no review process required. He further advised the governing body may place the item on an agenda and either accept the request for a public hearing or can simply dismiss the petition request.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:41 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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